

DEPARTMENT TWENTY-TWO  
HONORABLE ALESIA JONES  
707-207-7322

**TENTATIVE RULINGS  
AND  
PROBATE PREGRANTS**

**CALENDAR DATE: August 20, 2026**

**ADVISEMENTS**

**Probate Notes:** Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

**Civil Tentative Rulings and Probate Pregrants:** Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

**Appearances by Zoom:** Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

**Zoom Meeting ID:** 160 941 6482

**Zoom Meeting Passcode:** 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS  
START ON THE NEXT PAGE**

**9:30 a.m. CALENDAR**

LINE

1

**IN RE THE ESTATE OF ALFRED SMITH WILLINGHAM, DECEASED  
PR23-00421**

Administrator's Report and Second Account, Prob. C. §12200 and Petition for Additional Time

**PREGRANT ORDER**

At the last hearing the court considered the Report and Second Account and Petition for Additional Time and authorized the administration of the to continue for six months from June 18, 2026. The court further ordered the personal representative to file either a third report of status or a petition for final distribution no later than December 18, 2026.

The court finds that all notices have been given as required by law. The Second Account is settled, allowed and approved. Estate administration is to continue for six months from June 18, 2026.

The court on its own motion sets a compliance hearing to December 30, 2026, at 11:00 a.m. in Department 22. If the petitioner files a petition for final distribution before this date, the compliance hearing will be vacated and no appearance will be necessary. The petition for final distribution will be heard on the date set by the clerk's office through the standard calendar procedures once the Notice of Hearing has been filed and the appropriate filing fee has been paid.

LINE

2

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**IN RE THE ESTATE OF JAMES EARL SMITH, JR., DECEASED  
PR24-00016**

Amended First and Final Report of Personal Representative and Petition for Final Distribution; Request for Order of Statutory Fees to Attorney; Request for Order of Statutory Fees to Personal Representative; Request for Reimbursement for Out-of-Pocket expenses to Representative and Attorney, Reimbursement for Mortgage Payments on 118 Leonard Pre-Foreclosure; Payment of Civil Attorney Fees from Surplus and Request for Order of Distribution

**PREGRANT ORDER**

The court continued this matter to allow the petitioner to address the issues with the petition. An amended petition was filed on August 11, 2026 which replaces all prior petitions for all purposes. Absent any objections, the court intends to find the following:

The court finds all notices have been given as required by law. The amended petition is granted as prayed except that release of liability and discharge shall be ordered only upon the filing of the Ex Parte Petition for Final Discharge and Order once assets are distributed pursuant to Probate Code section 11753. All future compliance hearings are vacated.

LINE

3

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**IN RE THE ESTATE OF RAQUEL FERRER, DECEASED**  
**PR25-00202**

Petition for Probate of Will and for Letters Testamentary

**PREGRANT ORDER**

The court continued this matter to allow the petitioner to address the issues with the petition which have all been resolved by the supplement filed on August 13, 2026. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Raquel Ferrer dated October 30, 2002 is ordered admitted to probate.

The court appoints Eileen Rusconi as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

**IN RE THE ESTATE OF JOSEPH DESLIPPE MICKELSEN, DECEASED  
PR26-00046**

Petition for Letters of Administration with Authorization to Administer Under the Independent Administration of Estates Act (Filed By Jeffrey Leslie Mickelsen)

Objection to Petition for Probate and Issuance of Letters, Request to Appoint Representative Named In Trust

Amended Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act (Filed By Taunya Brookshire)

**PREGRANT ORDER**

The court continued this matter from April 27, 2026 and June 11, 2026 so that both competing petitions can be heard concurrently and to allow Petitioner, Jeffrey Leslie Mickelsen and Taunya Brookshire to address the issues with each of their petitions. However, nothing has been filed by since the last hearing date by any of the parties.

The court on its own motion continues this hearing to September 24, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the parties shall resolve the following issues as it relates to their own petition or objection:

**As to the Petition filed by Jeffrey Leslie Mickelsen:**

1. There is no proof of publication on file. (Prob. Code § 8124.)
2. There is no completed Duties and Liabilities of Personal Representative form on file. (Prob. Code § 8404.)
3. The Notice of Petition to Administer the Estate Form DE-121 states the petitioner's name as the decedent on item 1.
4. Caption: The caption in the petition and the notice provide the email address of the person who signed the proof of service which is not acceptable. The petitioner must provide his own email address or not provide one, if none exists. Providing an email is optional, but if the petitioner does not have one, then no email needs to be provided.
5. Petition, item 3.e: The petition is predicated on bond waivers. However, the bond waivers are not on the Mandatory Judicial Council Form DE-142/DE-111. In addition, the decedent was survived by a spouse who would be entitled to notice and is an heir of the estate. As such, the surviving spouse must also sign and file a bond waiver. Absent bond waivers by all heirs, the court will set bond.

6. Petition, item 3.h: Either (3) or (4) must be marked.
7. Petition, item 5.a: Either (3) or (4), and either (7) or (8) must be marked.
8. Petition, item 5.b: Either was or was not must be marked.
9. Petition, item 8: The petitioner did not list himself, relationship to the decedent, age and address.
10. Petition, item 9: The petition was not signed by the self-represented litigant as instructed in the petition.
11. The proof of service is not sufficient as provided. In addition, it is not clear if all persons entitled to notice were given proper notice as the petition mentions the possibility of a will and a trust with a trustee who were not listed in the petition. (Prob. Code §8110, Solano Local Rule 7.51a.)
12. The document attached to the petition identified as “Attachment 2” seeks relief which cannot be granted through this proceeding and is not properly before the court. The court cannot consider this information and encourages the petitioner to seek legal advice.

**As to the Amended Petition filed by Taunya Brookshire:**

Amended Petition-Will: A copy of the decedent’s alleged will and codicil were not attached to the amended petition. There is no April 20, 2020 will on file with the court and no codicil on file. It is unclear if the amended petition is referring to the copy of the trust instruments. The petitioner shall clarify.

LINE

5

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**IN RE THE ESTATE OF SUSAN ALICE OSTERGARD, DECEASED  
PR26-00065**

Dismissal Hearing

**PREGRANT ORDER**

This matter was continued from March 23, 2026, May 7, 2026 and July 2, 2026. At the last hearing the court set a dismissal hearing. However, the court notes an additional document was filed by the petitioner on August 4, 2026 indicating further objections which does not appear to have been served on the other party.

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

6

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**IN RE THE ESTATE OF TOSHILO MARY ANN CONTINO, DECEASED**  
**PR25-00071**

Petition for Probate of Lost Will and for Letters of Administration with Will Annexed and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued to allow the petitioner to address issues with the petition. The court has read and considered the supplement on file which addressed some issues but raised new ones. Therefore, the court on its own motion continues this hearing to October 8, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The Duties and Liabilities of Personal Representative form filed on July 1, 2026 is incomplete. (Prob. Code § 8404.) There was no address or phone number for the proposed representative.
2. The petition states the petitioner is a friend of the decedent, therefore, the petitioner's priority for appointment is below that of the Solano County Public Administrator. (See Prob. Code § 8461, subd. (p), (r).) There is no evidence that notice of the proceedings has been given to the Public Administrator. At least fifteen days prior to the continued hearing, the petitioner shall give notice of the hearing and shall provide a copy of the petition to the Solano County Public Administrator.

LINE

7

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**IN RE THE ESTATE OF ROBERT ROLITZ AGUSTIN, DECEASED**  
**PR26-00095**

Spousal Property Petition

PREGRANT ORDER

The court on its own motion continues this matter to Monday, October 5, 2026 at 9:30 a.m. in Department 22.

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**IN RE THE ESTATE OF ALEXANDER MAXIMOV, DECEASED  
PR26-00114**

Evgeniya Agarkova's Individually and as Guardian Ad Litem for Tatiana Maximova, Ex Parte Petition for Order For Family Allowance Before Inventory Filed

Opposition to Petition for Family Allowance Before Inventory Filed; Declaration of Rachel Libi Lew In Support of Opposition to Petition for Family Allowance

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (By Evgeniya Agarkova)

Rachel Lew's Objection to Petition for Letters of Administration filed by Evgeniya Agarkova, Individually and as Guardian Ad Litem for Tatiana Maximova

**PREGRANT ORDER**

The court notes there are two petitions: a Petition for General Administration and a Petition for Family Allowance. Both petitions are filed by Petitioner, Evgeniya Agarkova and an Objection for both was filed by Rachel Lew to the Petition for General Administration and the Petition for Allowance. The following issues were identified for all of the pleadings on calendar. At the last hearing of June 11, 2026, the court issued Letters of Special Administration to Sharon Duncan which expire on the date of this hearing.

Counsel and parties to appear as required by Solano County Local Rule 7.9. Remote appearances are approved.

**As to Petition filed by Evgeniya Agarkova for General Administration and the Objection filed by Rachel Lew to the Petition:**

The Duties and Liabilities Form is missing the phone number for Sharon Duncan. The petitioner may appear and provide the missing information.

**As to the Petition for Family Allowance and the Objection for Family Allowance:**

Counsel and parties to appear. Remote appearances are approved.

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**IN RE THE ESTATE OF EDWARD JOHN PRITCHARD, DECEASED  
PR26-00257**

Amended Petition for Letters of Administration

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issues with the petition. However, an amended petition was filed with the court. Amended petitions replace all prior petitions for all purposes.

The court on its own motion continues this hearing to October 22, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues as they relate to the amended petition:

1. Amended Petition - Caption: The body of the petition does not indicate that the petitioner is seeking full Authorization to Administer Under the Independent Administration of Estates Act which is what the body of the petition states in item 2.c. The petitioner shall clarify which authority is being sought.
2. Amended Petition, item 1: The name of the newspaper for publication was not provided.
3. Amended Petition, item 3.c: The petitioner must provide the street address, city and county of residence at the time of death. The petition provides that the Decedent's residence at time of death was Tokyo, Japan. It is unclear if Solano County is the appropriate jurisdiction and venue. If the decedent was domiciled in California, the county of residence is the proper county for proceedings. (Prob. Code, § 7051.) It is unclear why Solano County would be the proper place of administration. The petitioner shall explain.
4. Amended Petition, item 3.d: This section of the petition appears to be incomplete. The "Gross fair market value of real property was not provided. The petitioner shall provide estimated value for each line item in this section.
5. Amended Petition, item 3.f: This item was not answered.
6. Amended Petition, item 3.h: Either (3) or (4) must be marked.
7. Amended Petition, item 5.a: Either (3) or (4), (5) or (6), and either (7) or (8) must be marked.



8. Amended Petition, item 8: The petitioner must provide her relationship to decedent and any other persons who survived the decedent so far as known to or reasonably ascertained by petitioner.
9. Amended Petition, item 9: A self-represented litigant must sign the petition on both lines.
10. Amended Notice of Petition: There is no Amended Notice of Petition on file with the Court. The initial notice that was filed was incomplete. However, amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule 7.53(a).) There is no amended notice and no proof of service in the file showing this occurred.
11. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

10

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**IN RE THE ESTATE OF VIRGINIA S. BOOTH, DECEASED**  
**PR26-00298**

Petition for Probate of Will and for Letters of Administration with Will Annexed and Authorization to Administer Under the Independent Administration of Estates Act

**PREGRANT ORDER**

The court continued this matter to allow the petitioner to address the issues with the petition, which have all been resolved. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.

The holographic will of Virginia Booth dated April 8, 2026 is ordered admitted to probate.

The court appoints Damian Attard as administrator with will annexed with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their

counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

11

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**IN RE THE ESTATE OF DWIGHT L. JACKSON, DECEASED  
PR26-00302**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issues with the petition, which have all been resolved. Absent any objections, the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Dwight Lawrence Jackson dated April 11, 2024 is ordered admitted to probate.

The court appoints Marlene Ann Jackson as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall

attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

12

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**IN RE THE ESTATE OF BETTY JEAN OLSON, DECEASED**  
**PR26-00354**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issues with the petition, which have all been resolved. Absent any objections, the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Betty Jean Olson dated January 14, 2025 is ordered admitted to probate.

The court appoints Breanna Katherine Fleshman as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

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IN RE THE ESTATE OF DENNIS L. NOLAN, DECEASED  
PR26-00426

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer  
Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Diana M. Stowe dated July 10, 2020 is ordered admitted to probate.

The court appoints Breanna Katherine Fleshman as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

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LINE

14

**IN RE THE DAVID W. OTT TRUST DATED MARCH 18, 2003  
PR26-00430**

Petition for Order Determining Validity of Purported First Amendment to Trust;  
Confirming Successor Trustee; and Granting Interim Relief

PREGRANT ORDER

The court on its own motion continues this hearing to October 21, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issue:

The proof of service did not include “Rick Rojas” the alternate successor trustee. (Prob. Code §17203, et seq.)

LINE

15

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**IN RE THE ERNESTINE MILBRY 2014 REVOCABLE TRUST DATED  
DECEMBER 29, 2014  
PR26-00431**

Petition for Order Confirming Trust Assets, Trust and Trustee

Opposition to Petition for Order Confirming Trust Assets, Trust and Trustee

PREGRANT ORDER

The court on its own motion continues this hearing to September 21, 2026, at 9:30 a.m. in Department 22. The court notes there is an Objection on file with the court. Counsel and parties to appear at the continued hearing date as required by Solano County Local Rule 7.9b. Pending the continued hearing, the petitioner shall resolve the following issue:

Proper notice has not been given to Kenny Lewis. The petitioner shall provide a declaration under oath explaining what efforts have been made to locate him. (Prob. Code §17203, et seq.; Cal. Rules of Court, Rule 7.52(a).)

LINE

16

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**IN THE MATTER OF THE DISPOSITION OF REMAIN AND FUNERAL  
ARRANGMENTS OF DANTE’ FRANCEL HARDEN  
PR26-00436**

Petition for Order of Interment (Failure to Inter Remains)

PREGRANT ORDER

There is no proof of service on file to show proper notice has been given to all persons entitled to notice. However, even if the proof of service is addressed, the petitioner seeks relief not available as presented in the petition. Further, this court cannot issue a

restraining order combined with other relief sought in the petition as there is a separate procedure for that request. Therefore, the petition is denied.

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